

REFERRAL AGREEMENT

This Referral Agreement (this “**Agreement**”) is entered into as of _____ (the “**Effective Date**”), by and between Nokking Inc., a Delaware corporation (“**Nok**”) and [NAME] (“**Referral Partner**”). Nok and Referral Partner may each be referred to herein as a “Party” and together as the “Parties.”

WHEREAS, Nok is in the business of providing the Nok Services (defined below); and

WHEREAS, Nok wishes to engage Referral Partner to provide certain Referral Services (defined below) in accordance with the terms and conditions of this Agreement.

NOW, THEREFORE, in consideration of the representations, warranties, covenants, agreements and obligations contained herein, and other good and valuable consideration, the receipt and sufficiency of which are hereby acknowledged, the parties hereby agree as follows:

1. Select Definitions.

- 1.1. “**Commission**” shall have the meaning set forth in Exhibit A.
- 1.2. “**Services**” means Nok’s Returns Management and Resale offerings, including any bundled or platform-level agreements under which both are provided.
- 1.3. “**Excess Inventory**” means close-out, slow-moving, or surplus inventory introduced by Referral Partner for which Nok brokers a sale between a seller and a buyer.
- 1.4. “**Qualifying Agreement**” shall mean any definitive agreement and/or purchase order Nok enters into with Registered Leads which involve the payment of consideration by such Registered Lead to Nok in exchange for such Registered Lead’s purchase of access to or use of the Nok Services.
- 1.5. “**Registered Leads**” shall mean each proposed lead in the Territory provided by Referral Partner to Nok for Nok’s approval as set forth in Section 3.1, and which has been approved by Nok and executes a Qualifying Agreement during the Term.

2. Services and Compensation.

- 2.1. Services. During the Term, Referral Partner shall use commercially reasonable efforts to identify and introduce to Nok potential brands and counterparties for (a) Services and (b) Excess Inventory transactions (collectively, the “**Business Opportunities**”), on the terms set forth herein, including in the attached Exhibit A and as otherwise mutually agreed by the parties (collectively, the “**Referral Services**”). For the avoidance of doubt, (i) Referral Partner may not subcontract or transfer any part of the Referral Services or this Agreement to any third party, and (ii) the Referral Services do not include any, and Referral Partner acknowledges and agrees that Referral Partner has no, power or authority (express or implied) to make any commitment or incur any obligations on behalf of Nok, including with respect to any sale or license of any Nok Services.
- 2.2. Compensation. Referral Partner’s sole compensation under the terms of this Agreement is defined under Exhibit A.

- 2.3. Prices and Terms of Sale. Referral Partner understands that Nok will have sole discretion as to any prices and terms of sale set forth in a Qualifying Agreement.
- 2.4. Limitations. Except as otherwise set forth on Exhibit A, no Commissions will be paid on: (i) executed agreements with respect to parties that are not Registered Leads; (ii) revenue received from Registered Leads that is not contained in a Qualifying Agreement (e.g., with respect to products or services that are not Nok Services); and (iii) contracts (even for Nok Services) entered into with Registered Leads outside of the Commission Earning Window.

3. Lead Approval

- 3.1. Registered Leads Approval. Referral Partner shall submit each of its proposed leads to Nok following the process designated by Nok, which may be amended from time to time, for which approval may be given or withheld in Nok's sole discretion, including without limitation because Nok already has a relationship or is already pursuing a relationship with such party, or the proposed lead is already an approved lead of another Nok referral or reseller Referral Partner. If Referral Partner provides an introduction of a potential lead to Nok during the term of this Agreement, Nok approves such potential lead, and that potential lead then results in an executed Qualifying Agreement during the Term of this Agreement (the "**Registration Date**"), as determined solely in accordance with Nok's books and records, then such proposed lead shall qualify as a **Registered Lead**.
- 3.2. Restrictions. Referral Partner must have a preexisting relationship with each proposed lead and a good faith belief of such proposed lead's suitability as a sales prospect for the Nok Services, including such proposed lead's ability and authority to execute a Qualifying Agreement
- 3.3. Competitive Offerings. Referral Partner shall not discuss or promote any potential competitive offerings with Registered Leads. Referral Partner acknowledges and agrees that this restriction is essential for the mutual benefit of both parties.

4. Legal Relationship. The relationship of Nok and Referral Partner established by this Agreement is that of independent contractors, and nothing contained in this Agreement shall be construed to give either party the power to direct or control the day-to-day activities of the other. Neither Referral Partner nor any individual whose compensation for services is paid for by Referral Partner is in any way employed by Nok, nor shall any of them be deemed to be employed by Nok for any purpose. Referral Partner accepts exclusive liability for any and all payroll taxes or contributions according to applicable laws with respect to agents and/or other individuals whose compensation is paid by Referral Partner. Referral Partner shall not be an employee of Nok or any of its affiliates, or entitled to participate in any employee benefit plan of Nok or receive any benefit available to employees of Nok, including insurance, worker's compensation, retirement and vacation benefits. Neither party shall have any authority to, and shall not, make any representation or promise or enter into any agreement on behalf of the other party.

5. Marketing Materials.

- 5.1. Nok Marketing Materials. From time to time in its sole discretion, Nok may provide promotional materials for Referral Partner to use in marketing of the Nok Services (collectively, "**Nok Marketing Materials**"). Nok grants Referral Partner a limited, non-exclusive, non-transferable, non-sublicensable, revocable right to reproduce and distribute Nok Marketing Materials in connection with Referral Partner's performance of this Agreement.

- 5.2. Restrictions. Referral Partner shall fully comply with all guidelines, if any, communicated by Nok concerning the use of Nok Marketing Materials and shall not alter any such Nok Marketing Materials. Except as set forth in this Section, nothing contained in this Agreement will grant or will be deemed to grant to Referral Partner any right, title or interest in or to any of Nok's trademarks, marks or trade names and all uses of such trademarks, marks or tradenames and any goodwill arising therefrom will inure solely to the benefit of Nok.
- 5.3. Referral Partner Materials. Referral Partner hereby grants to Nok a non-exclusive, non-transferable and non-sublicensable license during the Term (as defined herein) to display, distribute and otherwise use any materials provided by Referral Partner to Nok ("**Promotional Materials**") solely in connection with this Agreement, with any reasonable usage guidelines provided by Referral Partner from time to time.

6. Confidentiality.

- 6.1. Definition. "**Confidential Information**" means information identified in good faith by either party as being confidential or proprietary, or information that, under the circumstances, should reasonably be understood to be confidential or proprietary. Confidential Information shall include the terms and conditions of this Agreement, research, product plans, products, services, customers, customer lists, markets, software, developments, inventions, processes, formulas, technology, designs, drawings, engineering, hardware configuration information, marketing, finances or other business information provided by either party. Confidential Information may include third party information as to which the disclosing party has an obligation of confidentiality.
- 6.2. Non-Disclosure. Each party agrees that it will use the Confidential Information provided by the other party only as necessary to exercise its rights and discharge its obligations under this Agreement and for no other purpose without the prior written consent of the disclosing party. Neither party shall disclose to a third-party Confidential Information of the other party. To maintain in confidence the Confidential Information of the disclosing party, the receiving party shall use the same degree of care as it uses to protect the confidentiality of its own Confidential Information of like nature, but no less than a reasonable degree of care. The foregoing obligations shall not apply to any Confidential Information that: (i) can be demonstrated to have been publicly known at the time of the disclosing party's disclosure of such Confidential Information to the receiving party; (ii) becomes part of the public domain or publicly known, by publication or otherwise, not due to any unauthorized act or omission by the receiving party; (iii) can be demonstrated to have been independently developed or acquired by the receiving party without reference to or reliance upon such Confidential Information; (iv) is provided to the receiving party by a third party who is under no obligation to the disclosing party to keep the information confidential; or (v) is required to be disclosed by law; provided, however, that the receiving party shall take reasonable actions to minimize such disclosure and promptly notify the disclosing party, to the extent permitted by law, so that the disclosing party may take lawful actions to avoid or minimize such disclosure.
- 6.3. Return of Materials. Upon the termination of this Agreement, or upon the disclosing party's earlier request, the receiving party will return or destroy, at the receiving party's option, all of the disclosing party's property and Confidential Information that the receiving party may have in its possession or control. Notwithstanding the foregoing, the obligation to return Confidential Information shall not cover information that is maintained on routine computer system backup

tapes, disks or other backup storage devices as long as such backed-up information is not intentionally used, disclosed, or otherwise recovered from such backup devices and is permanently deleted in the normal course of business.

7. Representations and Warranties.

- 7.1. Mutual. Nok and Referral Partner each represent, warrant, and covenant to the other that: (i) it has the necessary power and authority to enter into this Agreement and to perform its obligations and duties under this Agreement; (ii) the execution and performance of this Agreement has been authorized by all necessary corporate or institutional action; (iii) entry into and performance of this Agreement will not breach of any other agreement of such party or any judgment, order, or decree by which such party is bound; and (iv) it will comply with all applicable laws.
- 7.2. Referral Partner Representations and Warranties. Referral Partner further represents, warrants, and covenants to Nok that:
- 7.2.1. No Warranties. Referral Partner will not make any representation, guarantee or warranty with respect to any Nok Services, except as expressly authorized in writing by Nok, or embellish or exaggerate the capabilities of any Nok Services or the warranties for such Nok Services;
- 7.2.2. Unfair, Competitive or Deceptive Practices. Referral Partner shall not engage in any unfair, competitive or deceptive practices in respect to Nok or the Nok Services, including without limitation, (A) any product disparagement, (B) “bait-and-switch” practices as described in the applicable law regarding fraud and deceptive business practices, (C) false advertising, (D) false representations of the Nok Services or of Nok, (E) deceptive pricing, (F) use of misleading language with respect to the marketing of the Nok Services, (G) exclusionary or exclusive dealing contracts, and (H) any activities in violation of the Deceptive Trade Practices Act or similar statute; and
- 7.3. Disclaimer. NOK, TO THE MAXIMUM EXTENT PERMITTED BY LAW, EXPRESSLY DISCLAIMS ALL WARRANTIES AND REPRESENTATIONS, EXPRESS OR IMPLIED, INCLUDING: (A) THE IMPLIED WARRANTIES OF MERCHANTABILITY, FITNESS FOR A PARTICULAR PURPOSE, NON-INFRINGEMENT, TITLE, AND ANY WARRANTIES ARISING FROM COURSE OF DEALING, USAGE, OR TRADE PRACTICE, IN CONNECTION WITH THIS AGREEMENT; AND (B) ANY WARRANTY WITH RESPECT TO THE QUALITY, ACCURACY, CURRENCY OR COMPLETENESS OF THE NOK SERVICES.
- 7.4. Equitable Remedies. Each party agrees and acknowledges that any violation or threatened violation of the obligations and responsibilities set forth in Section 6 or, with respect to Referral Partner, Section 7.2, will cause irreparable injury to the other party and that, in addition to any other remedies that may be available, in law, in equity or otherwise, the non-breaching party shall be entitled to obtain injunctive relief against the threatened breach of this Agreement or the continuation of any such breach, without the necessity of proving actual damages or posting bond.

8. Limitation of Liability. OTHER THAN IN CASES OF Referral Partner’S BREACH OF SECTION 7.2 OR A PARTY’S (I) GROSS NEGLIGENCE, (II) WILLFUL MISCONDUCT, (III) BREACH OF

CONFIDENTIALITY OBLIGATIONS UNDER SECTION 6 OR (IV) INDEMNIFICATION OBLIGATIONS UNDER SECTION 9: (A) IN NO EVENT SHALL EITHER PARTY BE LIABLE TO THE OTHER PARTY FOR COSTS OF PROCUREMENT OF SUBSTITUTE GOODS OR SERVICES, LOST PROFITS OR ANY OTHER SPECIAL, CONSEQUENTIAL, INCIDENTAL, PUNATIVE, EXEMPLARY OR INDIRECT DAMAGES, LOSSES, COSTS OR EXPENSES OF ANY KIND, HOWEVER CAUSED, AND WHETHER BASED ON CONTRACT, TORT (INCLUDING NEGLIGENCE), OR ANY OTHER THEORY OF LIABILITY REGARDLESS OF WHETHER SUCH PARTY HAS BEEN ADVISED OF THE POSSIBILITY OF SUCH DAMAGES, LOSSES, COSTS OR EXPENSES, AND (B) IN NO EVENT SHALL EITHER PARTY'S AGGREGATE LIABILITY UNDER OR RELATED TO THIS AGREEMENT EXCEED THE COMMISSIONS PAID BY NOK TO Referral Partner HEREUNDER FOR THE TWELVE- (12) MONTH PERIOD PRIOR TO THE EVENT GIVING RISE TO SUCH CLAIM(S). THE FOREGOING LIMITATIONS WILL APPLY NOTWITHSTANDING THE FAILURE OF ESSENTIAL PURPOSE OF ANY LIMITED REMEDY HEREIN.

9. **Indemnification.**

- 9.1. **Nok Indemnification.** Nok shall defend, indemnify and hold harmless Referral Partner from and against any third-party suits, damages, costs, expenses (including reasonable attorneys' fees), judgments, penalties, claims, liabilities or losses of any kind or nature whatsoever (collectively, "***Losses***"), which may be sustained or suffered by or against any Referral Partner arising out of any actual or alleged intellectual property infringement or other infringement of a third party's proprietary rights by Nok as a result of the Nok Services or Nok Marketing Materials.
- 9.2. **Referral Partner Indemnification.** Referral Partner shall defend, indemnify and hold harmless Nok its subsidiaries and affiliates, and each of their members, managers, shareholders, officers, agents, employees, contractors and directors (each, an "***Nok Indemnified Party***") from and against any Losses, which may be sustained or suffered by or against any Nok Indemnified Party, arising out of (i) any actual or alleged intellectual property infringement or other infringement of a third party's proprietary rights by Referral Partner as a result of the Referral Partner Marketing Materials (except to the extent such infringement is based upon the use of Nok Marketing Materials in accordance with the terms of this Agreement), (ii) any property damage, death or personal injury caused by the negligence, gross negligence, or willful misconduct of Referral Partner, any of its affiliates or any of their agents or employees, (iii) any breach of Section 7.2, or (iv) any dispute between Referral Partner and the ultimate consumers of any Referral Partner products or services to the extent such dispute arises out of this Section 9.2.
- 9.3. **Procedure.** The indemnified party shall: (i) give the indemnifying party prompt written notice of any indemnified claim; provided, however, that any delay in providing such written notice shall not limit the indemnifying party's obligation to indemnify except to the extent such delay results in any prejudice to the indemnifying party; (ii) cooperate fully with the indemnifying party, at the indemnifying party's expense, in the defense or settlement of any indemnified claim; and (iii) give the indemnifying party control over the defense or settlement of any indemnified claim; provided, however, that any settlement must include a complete release of the indemnified party without requiring the indemnified party to make any payment or bear any obligation. The indemnified party shall have the right to participate in the defense at its own expense.

10. **Ownership.**

- 10.1. Nok Ownership. Referral Partner acknowledges and agrees that, as between Nok and Referral Partner, Nok and its licensors own all right, title and interest (including all intellectual property) in and to the Nok Services, Nok Marketing Materials, Referral Partner-Created Marketing Materials and the Nok name, trademarks, tradenames and logo(s).
- 10.2. Suggestions. If Referral Partner elects to provide or make available to Nok any suggestions, comments, ideas, improvements or other feedback relating to the Nok Services (“**Suggestions**”), Referral Partner hereby assigns to Nok all right, title, and interest in such Suggestions, and Nok is free to use the Suggestions for any purpose without any attribution or compensation to Referral Partner.
- 10.3. Reservation of Rights. Nok reserves all rights not expressly granted under this Agreement including the right to: (i) market, offer for sale, sell, demonstrate and distribute the Nok Services or any other products or services on its own; and (ii) appoint other referral Referral Partners, distributors, sales representatives and other third parties to market, offer for sale, sell, demonstrate or distribute the Nok Services or any other products or services. Nok may exercise such rights without any liability or compensation to Referral Partner.

11. Term and Termination.

- 11.1. Term. Unless terminated by the parties pursuant to this Section, this Agreement shall commence on the Effective Date and shall remain in full force and effect for an initial term of two (2) years and shall automatically be extended for successive one (1) year periods.
- 11.2. Termination for Convenience. Either party may terminate this Agreement for any or no reason by providing the other party with at least thirty (30) days prior written notice of termination.
- 11.3. Termination for Cause. If either party defaults in the performance of any material provision of this Agreement, then the non-defaulting party may give written notice of termination to the defaulting party if (i) the default is not curable or (ii) a curable default is not cured within thirty (30) days from the date of such notice.
- 11.4. Referral Partner Activities. Upon expiration or termination of this Agreement, Referral Partner shall immediately cease representing itself as a representative of Nok and discontinue all use of the Nok Services, Nok Marketing Material and Referral Partner-Created Marketing Material.
- 11.5. Survival. Any provision that, by its terms, is intended to survive the expiration or termination of this Agreement shall survive such expiration or termination, specifically including Sections 1, 6, 7, 8, 9, 10, 11.5, and 12.

12. Miscellaneous.

- 12.1. Notice. All notices, demands and other communications (“**Notices**”) to be given or delivered under or by reason of the provisions of this Agreement shall be in writing and sent to the parties according to the contact information provided below, or such other contact information as either party shall notify the other in accordance with this Section:

To Nok:
Nokking Inc.

Attn: Maddy McIntyre
1606 Headway Circle PMB 9331
Austin, TX 78754

To Referral Partner:
[Referral Partner NAME]
[ADDRESS]
[ADDRESS]

- 12.2. Interpretation. For the purposes of this Agreement: (i) the words “such as,” “include,” “includes” and “including” shall be deemed to be followed by the words “without limitation;” (ii) the word “or” is not exclusive; and (iii) the words “herein,” “hereof,” “hereby,” “hereto” and “hereunder” refer to this Agreement as a whole. This Agreement shall be construed without regard to any presumption or rule requiring construction or interpretation against the party drafting an instrument or causing any instrument to be drafted.
- 12.3. Assignment. Referral Partner agrees that its rights and obligations under this Agreement may not be transferred or assigned without Nok’s prior written consent. Subject to the foregoing, this Agreement will be binding upon and inure to the benefit of the parties hereto, their successors and assigns.
- 12.4. Entire Agreement. This Agreement contains the entire agreement of the parties with respect to the subject matter hereof and supersedes all previous or contemporaneous oral or written negotiations or agreements with respect to such subject matter. In the event of any conflict between this Agreement and any exhibit, the terms and conditions of this Agreement shall take precedence.
- 12.5. Amendment. This Agreement may not be amended except in a writing executed by an authorized representative of each party.
- 12.6. Severability. If any provision of this Agreement shall be held to be invalid or unenforceable under applicable law, then such provision shall be construed, limited, modified or, if necessary, severed to the extent necessary to eliminate its invalidity or unenforceability, without in any way affecting the remaining parts of this Agreement.
- 12.7. Governing Law. This Agreement shall be governed and construed in accordance with the laws of the State of Texas, without reference to any choice of law rules or conflict of laws principles. This Agreement and the rights and obligations of the parties under this Agreement will not be governed by the United Nations Convention on Contracts for the International Sale of Goods, the application of which is expressly excluded by the parties. The parties hereby agree that any action or legal proceeding shall be brought only in a court of competent jurisdiction in Travis County, Texas. Each Party hereby submits to the personal jurisdiction and venue of such courts and waives any objection on the grounds of venue, forum non-conveniens or any similar grounds with respect to any such claim.
- 12.8. No Waiver. The failure of either party to require strict performance by the other party of any provision hereof shall not affect the full right to require such performance at any time thereafter, nor shall the waiver by either party of a breach of any provision hereof be taken or held to be a waiver of the provision itself. Any waiver of the provisions of this Agreement, or of any breach or

default hereunder, must be set forth in a written instrument signed by the party against which such waiver is to be enforced.

- 12.9. Force Majeure. Neither party shall be liable for any failure to perform under this Agreement to the extent due to any act of God, fire, casualty, flood, war, strike, lock out, failure of public utilities, injunction or any act, exercise, assertion or requirement of any governmental authority, epidemic, destruction of production facilities, insurrection or any other cause beyond the reasonable control of the party invoking this provision.
- 12.10. Counterparts. This Agreement may be executed in one or more counterparts, each of which shall be deemed an original, but all of which together shall constitute one and the same agreement.

[Signature Page Follows]

IN WITNESS WHEREOF, the parties have executed this Agreement as of the date first written above.

[NAME]

Nokking Inc.

By: _____

Name: _____

Title: _____

Date: _____

Exhibit A

COMPENSATION

Excess Inventory Commissions. If an introduction results in Nok brokering the sale of Excess Inventory to a buyer, Referral Partner shall be entitled to the below compensation.

1. Brand Introductions. For each Brand introduced by Referral Partner where a Business Opportunity closes during the Term, Referral Partner shall earn Gross Profit share as follows:

- Deal 1: Ten percent (10%) of Gross Profit
- Deal 2: Seven-and-a-half percent (7.5%) of Gross Profit
- Deal 3 and thereafter: Four percent (4%) of Gross Profit

This Commission schedule applies to each Brand introduced.

2. Buyer Introductions. For each Buyer introduced by Referral Partner where a Business Opportunity closes during the Term, Referral Partner shall earn Revenue share as follows:

- Deal 1: Seven-and-a-half percent (7.5%) of Gross Profit
- Deal 2: Five percent (5%) of Gross Profit
- Deals 3 and thereafter: Three percent (3%) of Gross Profit

This Commission schedule applies to each Buyer introduced.

3. Gross Profit. “**Gross Profit**” means revenue actually received by Nok on an Excess Inventory transaction minus all direct costs incurred by Nok in brokering the transaction (including buyer commissions, samples, transportation, and similar deal costs).
4. Payment Terms. Commissions are earned upon Nok’s receipt of payment from the applicable counterparty and are payable to Referral Partner NET 30 from date of aforementioned receipt.

Platform Bonus. If an introduction results in a multi-service agreement for the Services, Referral Partner shall receive \$5,000, payable within ninety (90) days after execution.